MagicCode Super-Resolution Software End User License Agreement (EULA)

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This End User License Agreement ("Agreement") is a legally binding contract between you ("End User", "you") and MagicCode Technology Co., Ltd. ("MagicCode", "we", "us", or "our") regarding your use of the MagicCode Super-Resolution Software ("Software").

By installing, downloading, copying, accessing, integrating, or using the Software, you acknowledge that you have read, understood, and agreed to be bound by all terms and conditions of this Agreement. If you do not agree to these terms, you must immediately cease all use of the Software and uninstall or remove it from your devices, applications, and build environments.

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1. Definitions

Software means the MagicCode Super-Resolution software, libraries, SDKs, models, plugins, sample projects, documentation, updates, and related materials made available by MagicCode under this Agreement, including object code, native libraries, runtime backends, and integration components for environments such as Unity and Unreal Engine.

Services means any professional, technical, consulting, training, integration, maintenance, priority support, service-level, on-site, custom development, or other support services provided by MagicCode. Services do not include the mere download, installation, or use of the Software itself, public documentation, or community channels that MagicCode may make available without charge and without SLA.

License Fee means any fee payable for a license to the Software under this Agreement. Unless otherwise stated in a separate written agreement with MagicCode, the License Fee for the Software is zero.

Services Fee means fees payable for Services under a separate Services Agreement, statement of work, order form, quotation, or other written arrangement with MagicCode.

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2. License Grant

Subject to your compliance with this Agreement, MagicCode grants you a non-exclusive, non-transferable, non-sublicensable, revocable license to download, install, and use the Software on supported devices and platforms specified in the Software Specification Document.

No License Fee. Unless MagicCode expressly states otherwise in a separate written agreement, MagicCode grants the Software license under this Agreement at no charge. Nothing in this section obligates MagicCode to provide any Services.

The license entitles you to use the Software's supported super-resolution functions, including flexible scaling factors in the range from 1.0x to 8.0x where supported by the selected backend and model configuration, public processing modes such as Speed and Balanced, CPU and GPU acceleration paths, and associated performance optimization features.

The Software may include platform-specific native libraries, runtime backends, sample projects, and integration plugins for environments such as Unity and Unreal Engine. These components are licensed only for use with the Software and only within the scope of your applicable MagicCode license.

The license does not grant you any right to:

(a) use the Software beyond the functions and usage scope explicitly provided;

(b) distribute, rent, lease, lend, sublicense, sell, or transfer the Software to any third party except as expressly authorized in a separate written agreement;

(c) use the Software for illegal, unethical, fraudulent, infringing, or harmful activities;

(d) modify, adapt, reverse engineer, decompile, disassemble, or attempt to derive the source code, model parameters, algorithms, protocols, or internal implementation of the Software, except where such restriction is prohibited by applicable law;

(e) remove, alter, or obscure any copyright, trademark, license, or proprietary notices embedded in or accompanying the Software;

(f) circumvent license checks, technical protection measures, usage limits, or reporting mechanisms that are required for license compliance, compatibility, stability, or security.

3. Professional Services; Fees; No Implied Support

Services Are Separate. Any Services you request are not part of this Agreement and are not included in the free license to the Software. Services must be ordered under a separate statement of work, order form, services agreement, quotation acceptance, or other written arrangement with MagicCode ("Services Agreement").

Services Fees. Services are provided for a Services Fee as specified in the applicable Services Agreement or written quote. Payment terms, deliverables, scope, schedule, and acceptance criteria for Services shall be governed by that Services Agreement. Services Fees are separate from, and in addition to, any License Fee for the Software under this Agreement.

No Implied Support. Unless you have entered into a paid Services Agreement, MagicCode has no obligation to provide integration assistance, custom development, consulting, training, priority support, dedicated engineering resources, service-level commitments, guaranteed response times, on-site assistance, or any other Services.

Community and Public Resources. MagicCode may, at its discretion, make public documentation, sample code, demo projects, GitHub repositories, FAQs, or community channels such as GitHub Issues available without charge and on an "as-is" basis. Availability of such resources does not create any Services obligation or SLA.

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4. Intellectual Property Rights

You acknowledge and agree that MagicCode and its licensors own all intellectual property rights in and to the Software, including but not limited to copyrights, trademarks, patents, trade secrets, algorithms, model files, parameter files, native libraries, plugins, documentation, updates, modifications, and derivative improvements.

All content generated by the Software, such as super-resolved images or videos, shall be owned by you, provided that the original content used as input does not infringe the intellectual property, privacy, publicity, portrait, or other rights of any third party. MagicCode does not claim ownership of your input content or generated output content.

MagicCode may use aggregated or anonymized technical and usage data related to Software operation, such as hardware compatibility information, backend selection, function usage statistics, error codes, performance metrics, and processing statistics, to maintain, secure, improve, and develop the Software and related products, in accordance with the applicable Privacy Policy.

The "MagicCode" name, logo, and related brand assets are trademarks or proprietary identifiers of MagicCode Technology Co., Ltd. You shall not use these

trademarks or brand assets without prior written permission from MagicCode. This Agreement does not grant you any trademark license.

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5. Privacy and Technical Data

Your use of the Software may involve the collection and transmission of limited device and technical data for license compliance, compatibility optimization, troubleshooting, security, and performance improvement. Such data may include device_model, uuid, client_ip, sdk_version, backend, alg_mode, scaler_factor, width, height, num_threads, error_code, report_reason, processing call statistics (process_call_count, process_success_count, process_fail_count), and processing timing statistics (process_last_time_us, process_total_time_us, process_avg_time_us).

MagicCode does not collect or upload your image or video content through the technical reporting function. The collection, use, storage, and protection of technical data are described in the MagicCode Super-Resolution Software Privacy Policy. By using the Software, you acknowledge that you have read and agreed to the applicable Privacy Policy.

You shall not disable, tamper with, intercept, falsify, or misuse technical reporting, license verification, or security-related mechanisms where such mechanisms are required for lawful operation, license compliance, product stability, or security. Where non-essential technical reporting can be disabled through provided settings, your use of that setting shall not affect MagicCode's right to collect data necessary for core functionality, compatibility, license compliance, or legal obligations.

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6. Acceptable Use Restrictions

When using the Software, you shall comply with all applicable laws, regulations, platform rules, and ethical standards, and shall not engage in any of the following activities:

- Using the Software to process content that is illegal, obscene, violent, defamatory, infringing, discriminatory, or violates the privacy, publicity, portrait, intellectual property, or other legitimate rights of any third party;
- Using the Software to generate or enhance misleading, fraudulent, impersonating, or harmful content, including deepfakes, forged documents, manipulated evidence, or content intended to deceive, defame, harass, or exploit others;
- Using the Software in medical diagnosis, precision measurement, legal evidence analysis, safety-critical systems, autonomous control, emergency response, or

other high-risk professional scenarios unless MagicCode has expressly authorized such use in writing;

- Overloading, disrupting, probing, reverse engineering, or interfering with the normal operation of MagicCode's servers, databases, license systems, reporting systems, update services, or other systems;
- Using the Software in a manner that violates the terms of service, developer agreements, or distribution rules of third-party platforms or engines, including but not limited to Apple App Store, Google Play, Unity, Unreal Engine, or other software distribution channels;
- Using modified, cracked, pirated, or unauthorized versions of the Software, or using the Software with any third-party tool that disrupts normal functionality, bypasses license restrictions, or compromises security.

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7. License Type and Term

7.1 Personal License

For personal users, the Software is provided under a free personal license unless MagicCode expressly offers additional paid personal features in a separate written arrangement. The free personal license entitles you to use the core super-resolution functions for non-commercial purposes only.

Personal licenses are non-transferable and are limited to use by the licensed individual on the authorized number of personal devices specified in the official documentation or applicable written authorization.

7.2 Commercial License

For commercial entities, including enterprises, studios, service providers, application developers, game developers, and integrators, use of the Software for commercial, evaluation, integration, pilot, or production purposes must be authorized by MagicCode. MagicCode may provide such authorization at no License Fee, on a trial basis, or under separate written commercial terms, depending on the applicable written arrangement.

Commercial use includes, without limitation, processing client content, integrating the Software into commercial products or services, using the Software in internal or external production pipelines, bundling native libraries or plugins into applications, or making the Software available to employees, contractors, customers, or end users.

The authorized scope, including products, platforms, devices, users, build targets, distribution channels, business scenarios, license term, and any applicable License Fee or free-use conditions, shall be specified in a separate license agreement, order form, evaluation authorization, email confirmation, or other written authorization

issued by MagicCode. Any use outside the authorized scope constitutes a material breach of this Agreement.

Commercial authorization under this Agreement covers the Software license only. It does not include Services unless expressly stated in a separate Services Agreement.

7.3 License Term and Termination

This Agreement remains in effect from the date you first use the Software until terminated. MagicCode may terminate this Agreement immediately if you materially breach any term, including unauthorized commercial use, infringement, reverse engineering, license circumvention, misuse of reporting or license systems, or violation of applicable law.

Upon termination, you must immediately cease all use of the Software, uninstall it from all devices and build environments, stop distributing any products containing unauthorized Software components, and delete all copies in your possession or control.

Sections concerning definitions, intellectual property, privacy and technical data, professional services, acceptable use restrictions, disclaimers, limitation of liability, indemnification, governing law, and miscellaneous provisions shall survive termination.

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8. Disclaimer of Warranties and Liabilities

8.1 Disclaimer of Warranties

THE SOFTWARE IS PROVIDED “AS IS” AND “AS AVAILABLE” WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY. MAGICCODE EXPRESSLY DISCLAIMS ALL IMPLIED WARRANTIES, INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, QUIET ENJOYMENT, AND NON-INFRINGEMENT.

MagicCode does not warrant that: (a) the Software will operate error-free, uninterrupted, or without delay; (b) the Software will be compatible with all devices, operating systems, drivers, runtime backends, graphics APIs, game engines, third-party plugins, or hardware configurations; (c) the super-resolution results generated by the Software will meet your specific requirements, including clarity, color accuracy, temporal consistency, texture fidelity, or suitability for commercial use; (d) any defects or errors will be corrected; (e) performance results will match benchmark results in all environments.

The performance and output quality of the Software are subject to many factors, including CPU, GPU, memory, drivers, operating system version, backend selection,

model configuration, input resolution, input quality, scaling factor, thread count, and integration method. Performance variations caused by such factors are not considered software defects.

8.2 Specific Disclaimers for Super-Resolution Function

You acknowledge and agree that super-resolution technology is based on current image processing and AI-related algorithms, and its effect is limited by the quality, resolution, compression level, noise, motion, and content characteristics of the input image or video. MagicCode shall not be liable for insufficient enhancement, loss of detail, visual artifacts, distortion, hallucinated details, temporal inconsistency, color deviation, or inaccuracy caused by algorithmic limitations or input content conditions.

The Software is not designed or certified for professional-grade accuracy requirements such as medical imaging, precision measurement, legal evidence authentication, biometric identification, scientific analysis, or safety-critical decisions. You are solely responsible for independently verifying whether the output is suitable for your intended use.

8.3 Third-Party Platforms, Engines, and Components

If you use the Software with third-party platforms, engines, SDKs, stores, drivers, or services, including Unity, Unreal Engine, Apple, Google, Microsoft, graphics API providers, or hardware vendors, you are responsible for complying with all applicable third-party terms. MagicCode does not control and shall not be liable for third-party compatibility changes, store review decisions, engine updates, driver issues, platform restrictions, or third-party service availability.

Any sample code, demo project, integration guide, or benchmark data is provided for reference only and does not constitute a warranty, production-readiness guarantee, or performance commitment.

8.4 Backup and Content Responsibility

You are solely responsible for backing up original images, videos, project files, build files, and related data before using or integrating the Software. MagicCode shall not be liable for loss, corruption, unauthorized disclosure, or damage to content or project files caused by improper operation, integration errors, software exceptions, device failures, third-party tools, or platform issues.

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9. Limitation of Liability and Indemnification

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, MAGICCODE SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF

PROFITS, LOSS OF DATA, LOSS OF CONTENT, BUSINESS INTERRUPTION, PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES, REPUTATIONAL DAMAGE, OR DAMAGES ARISING FROM THIRD-PARTY CLAIMS, ARISING OUT OF OR IN CONNECTION WITH YOUR USE OF OR INABILITY TO USE THE SOFTWARE, EVEN IF MAGICCODE HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

In no event shall MagicCode's total liability to you for direct damages arising from or relating to this Agreement exceed the greater of: (a) the total License Fees and Services Fees you have paid to MagicCode for the Software and Services in the 12 months preceding the claim; or (b) USD 100 if you have not paid any fees, unless a higher amount is required by applicable law. This limitation does not apply to liability that cannot be excluded or limited under applicable law.

You agree to indemnify and hold harmless MagicCode, its affiliates, directors, officers, employees, contractors, licensors, and partners from and against any claims, damages, liabilities, costs, and expenses, including reasonable attorney's fees, arising out of your use or integration of the Software, your violation of this Agreement, your content, your products or services, your violation of applicable law, or your infringement or alleged infringement of any third-party rights.

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10. Software Updates and Changes

MagicCode may provide updates, upgrades, patches, model changes, backend changes, plugin updates, or new versions of the Software from time to time to improve performance, fix bugs, address security issues, maintain compatibility, or add, modify, or remove features. Updates may be provided automatically or require manual download and installation, depending on the platform and distribution method.

By installing or using any update, you agree to be bound by the then-current Agreement and any additional terms accompanying the update. If you do not agree to an update or updated terms, you may stop using the Software, but this may result in the Software functioning improperly, losing compatibility, or being unable to use certain features.

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11. Export Control and Regulatory Compliance

You shall comply with all applicable export control, sanctions, import, data protection, consumer protection, and technology compliance laws and regulations. You shall not export, re-export, transfer, provide, or use the Software in any country, region, entity, or scenario prohibited by applicable law or sanctions rules. You represent that you are not located in, organized under the laws of, or ordinarily resident in any embargoed or restricted jurisdiction, and are not a restricted party under applicable sanctions or export control lists.

12. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the Hong Kong Special Administrative Region, excluding its conflict of laws principles, unless mandatory consumer protection laws in your jurisdiction require otherwise.

Any dispute, controversy, or claim arising out of or relating to this Agreement or the use of the Software shall first be resolved through good-faith negotiation between you and MagicCode. If the dispute cannot be resolved through negotiation within 30 days, either party may submit the dispute to a competent court or arbitration institution with jurisdiction under applicable law or under a separate written agreement between the parties. Nothing in this Agreement prevents either party from seeking urgent injunctive or equitable relief to protect intellectual property, confidential information, security, or license compliance.

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13. Miscellaneous

Entire Agreement. This Agreement, together with the applicable Privacy Policy, Software Specification Document, Services Agreement (if any), order form, purchase confirmation, and any separate written commercial license terms, constitutes the entire agreement between you and MagicCode regarding the Software and supersedes all prior or contemporaneous agreements, communications, and understandings relating to the subject matter herein.

Amendments. MagicCode may modify this Agreement from time to time. We will notify you of material changes by posting the updated Agreement on our official website, sending a notification through the Software, or other reasonable means. Your continued use of the Software after the effective date of the modified Agreement constitutes your acceptance of the changes.

Severability. If any provision of this Agreement is deemed invalid, illegal, or unenforceable by a court or authority of competent jurisdiction, the remaining provisions shall remain in full force and effect.

Assignment. You may not assign or transfer this Agreement or any rights or obligations herein without prior written consent from MagicCode. MagicCode may assign this Agreement in connection with a merger, acquisition, restructuring, sale of assets, or as otherwise permitted by law.

No Waiver. MagicCode's failure to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other provision.

Language. If this Agreement is translated into another language, the English version shall prevail to the extent permitted by applicable law, unless a localized version is expressly designated as controlling.

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14. Contact Information

If you have any questions, concerns, or requests regarding this Agreement, please contact us at:

- **Legal Department Email:** legal@magiccode-ai.com
- **Official Website:** www.magiccode-ai.com

For Services inquiries, including integration support, customization, consulting, training, or commercial cooperation, please contact us through the official website or the contact channels specified in your Services Agreement or quotation.

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